

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 13, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal and Jeff White. Absent: Dr. Mark Rinne and Dicky Shanor. Also present: Kylie Soden, Deputy City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Case, and pursuant to support received by Mr. Cook and Mr. Luna, Agenda Item #26(b) was removed from the Consent Agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on October 22, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal declared a conflict of interest (business interest in voucher payable to Cowboy Dodge, Inc.) and vacated Council Chambers. Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Roybal returned to Council Chambers.

Public Hearing for a special malt beverage permit application filed with the City Clerk’s Office for The City of Cheyenne d/b/a City of Cheyenne – Civic Center, 510 W. 20th St., Cheyenne, Wyoming. Jason Sanchez, Deputy Director, Community Recreation and Events, explained governing body directives and goals involving the Civic Center, and stated due to recent state statute and city code changes, it has been determined the City is eligible to hold this type of permit. Mr. Sanchez provided information on the proposed use of the permit including: dispensing occurring from 1-3 locations depending on the performance; eligible liquor licensees providing wine and liquor sales at certain events; anticipated revenue from malt beverage sales; TIPS certified staff; positive customer feedback related to offering malt beverage sales and enhancing the Civic Center experience overall. Upon inquiry, Mr. Sanchez confirmed malt beverage orders must be paid for at delivery which will require staff to pre-determine order needs to request a check payment through the accounts payable system, and that any remaining malt beverage products will be locked in a secure area. Upon inquiry, Chief Brian Kozak, Police Department, provided information on alcohol compliance checks, stating the Civic Center will be eligible for compliance checks under the same protocol as all annual permit/license holders. There being no further

comments or input and purpose of the public hearing having been met, Mayor Orr closed the public hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending Chapter 12.24, Art in Public Places, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming, pertaining to the Art in Public Places Committee. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of governing body present. (#4247)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Upon inquiry, Amy Allen, City Engineer, explained due to current and future residential and commercial growth in the area of Powderhouse and Gardenia, consideration of widening/expanding existing road infrastructure in the future is warranted. Motion carried. Voting “yes” – all members of the governing body present. (#4248)

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County A-1 Agricultural and Rural Residential to MUR Mixed-Use Residential Emphasis for a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian Cheyenne, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane). Mr. Roybal moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 1st READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from HR, High Density Residential to CB, Community Business for a parcel of land consisting of Lots 9 through 12, Block 9, Meadowbrooke Park Subdivision, Cheyenne, Wyoming (located at the south east corner of Edgewater Avenue and Bluegrass Circle) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from CB, Community Business to HR, High Density Residential for a parcel of land consisting of a portion of Lot 1, Block 1, Plaza Del Range, Second Filing Subdivision, Cheyenne, Wyoming (located at 3110 Dell Range Blvd., between Hilltop Avenue and Ridge Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending, creating, deleting and re-creating various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code

relating to general provisions, and including adoption of the International Building Code and other related Codes, 2018 edition – referred to Public Service Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending, deleting and re-creating sections within Chapter 8.12 International Fire Code adopted, of Title 8, Health and Safety, of the Cheyenne City Code relating to general provisions pertaining to fire protection and regulations, and adoption of the International Fire Code, 2018 edition, and certain Codes and practices promulgated by the National Fire Protection Association – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Amending Chapter 2.32, Fire Department, Section 2.32.020, Department Personnel, and Chapter 2.84, Miscellaneous Boards and Commissions, Section 2.84.050, International Fire Code Board of Appeals, of Title 2, Administration and Personnel, of the Cheyenne City Code pertaining to the Fire and Rescue Department – referred to Public Services Committee. (Sponsor – Mr. Roybal)

ORDINANCE – 1st READING – Creating Section 1.08.030, Official Song-Recognition and Use, of Chapter 1.08, Official Seal and Emblem, of Title 1, General Provisions, of the Code of the City of Cheyenne, Wyoming, pertaining to designation of ‘Cheyenne Anthem’ (©2018) as the official song of the City of Cheyenne – referred to Public Services Committee. (Sponsors – Mr. Cook, Mr. Laybourn and Mr. Roybal)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for South Park Estates, 10th Filing, a replat of Lots 1, 2, 5, and a portion of Lot 3, Block 1, South Park Estates, 6th Filing, Cheyenne, Laramie County, Wyoming (located between Partoyan Drive and Walterscheid Boulevard, north of I-80). Kelly Hafner, CivilWorx, LLC, agent for the applicant, explained they would like to request a 60 ft. right-of-way opposed to the 70 ft. right-of-way as proposed in the staff report that will include a pedestrian pathway easement, and stated during a meeting with City Engineering staff, it had been determined the request for the 60 ft. right-of-way would be a fair compromise. Amy Allen, City Engineer, further explained most right-of-way widths in the area are 60 ft. Mr. Roybal moved to adopt with revised map and the following staff conditions #1 – provide 70 ft. right-of-way for 3rd Street and #2 – correct the name of Thomes Avenue, seconded by Mr. Case. Mr. Roybal moved to amend by removing staff condition #1, seconded by Mr. Case. Motion to amend failed. Voting “no” - all members of the governing body present. Mr. Roybal moved to amend staff condition #1 by changing the 70 ft. right-of-way to “Provide 60 ft. right-of way for 3rd Street”, seconded by Mr. Cook. Upon staff request and for clarification, Mr. Roybal moved to amend by correcting the name of Thomes Avenue in staff condition #2, seconded by Mr. Luna. Upon inquiry, Susana Montana, Planning and Development Department, explained the property is zoned LI, Light Industrial, and according to the UDC, the right-of-way width for an industrial street is 70 ft. She explained this portion of the UDC is under the jurisdiction of the City Engineer, who has the authority to approve a subdivision standard waiver such as a street width requirement. Both motions to amend carried. Voting “yes” – all members of the governing body present. Main motion as twice amended carried. Voting “yes” – all members of the governing body present. (#5956)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Hope Subdivision, 4th Filing, a replat of Lot 2, Block 1, Hope Subdivision, 2nd Filing, Laramie County, Wyoming (located at the southeast corner of the intersection of E. Nation Road and S. Avenue B-6). Motion (per Consent Agenda) carried. (#5957)

RESOLUTION – Proclaiming ‘Cheyenne Anthem’ as the official song for the City of Cheyenne, Wyoming. Mr. Roybal reported there was no recommendation from Public Services Committee on the item and explained it was decided to introduce the item as an ordinance instead of a resolution, which is included on the current agenda. The resolution died due to lack of a motion.

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for the Clear Creek Industrial Park Subdivision, a replat of a portion of Block 10, Lots 1 and 12 of Block 11 and Lots 1 and 17 of Block 12, Interior Heights Addition, and portions of adjacent streets and alleys thereto, situated in the SW1/4 of Section 6, Township 13N, Range 66W, of the 6th P.M., Cheyenne, Laramie County, Wyoming (located at the northeast corner of Arp Avenue and Van Tassell Court, east of S. Parsley Blvd.) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Aspen Creek, a plat of a portion of the west half, of the west half of Section 17, T14N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming (located west of and adjacent to Powderhouse Road, north of Spirit Lane) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Swan Ranch Rail Park, Fifteenth Filing, a plat of a portion of the northwest one-quarter of Section 27, Township 13 North, Range 67 West of the Sixth Principal Meridian, Cheyenne, Laramie County, Wyoming (located east of Berwick Drive, north of Tundra Drive) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Declaring as surplus a City-owned property legally described as Lot 1, Block 1, Clear Creek Subdivision, 1st Filing; Lot 2, Block 1, Clear Creek Subdivision, 1st Filing; and Lot 1, Block 1, Clear Creek Subdivision, 2nd Filing together with improvements thereon, Cheyenne, Laramie County, Wyoming, and authorizing the City’s Purchasing Manager to proceed with the sale of said parcel pursuant to Wyo. Stat. §15-1-112 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] CFD Park N Ride Planned Unit Development Preliminary Plan for a portion of the SE1/4, Section 11 and the NE1/4, Section 14, T13N, R67W, of the 6th P.M., Laramie County, Wyoming (located east of and adjacent to I-25, north of College Drive) – referred to Public Services Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Russell + Mills Studios, Fort Collins, Colorado, for the North Cheyenne Community Park Masterplan – referred to Finance Committee.

[CA] Grant Award Agreement between the City of Cheyenne and the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security, FEMA, Grant Programs Directorate, State Homeland Security Program Grant Fiscal Year 2018 for the Cheyenne Regional Emergency Response Team #7 (DHS Grant) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Burns & McDonnell Engineering Company, Bloomington, Minnesota, for the City of Cheyenne Integrated Solid Waste Plan – referred to Finance Committee.

[CA] Grant Agreement between the City of Cheyenne, Transit Division, and the Wyoming Department of Health, Aging Division, to provide support services to persons 60 years or older under Title III-B Program Grant for FY19 (grant funds) – referred to Finance Committee.

Contract Modification No. 1 to Contract #6892 between the City of Cheyenne, Public Works Department, and Noel Griffith Jr. & Associates Architects, Cheyenne, Wyoming, for design engineering of a second level shell and core to the Cheyenne Municipal Court Project (1% Specific Purpose Sales Tax). Vicki Nemecek, Director of Public Works, provided information on the project stating the modification is for design of a second level shell and core. Ms. Nemecek referenced a memo issued by the City Treasurer containing project funding source information. Upon inquiry by Joe Dougherty, Noel Griffith provided information on the project cost to date, which includes purchase of the building, asbestos removal, demolition, soft costs and second level shell and core totaling approximately \$13.5 million. He advised, upon inquiry, the second level would not be used for the Municipal Court and provided first and second floor measurements. Mr. White moved to approve in an amount not to exceed \$31,100.00, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Luna voting “no”. (#6892)

Amendment No. 1 to Contract #6854, Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control and Animal Shelter Services. Mr. White moved to approve, seconded by Mr. Case. Upon inquiry, Phil Kiner, Interim CEO, Cheyenne Animal Shelter, explained a third-party audit of policies and procedures will begin in early December. Motion carried. Voting “yes” – all members of the governing present. (#6854)

[CA] Consideration of Bid #E-6-19 for furnishing one new 2018-2019 motor grader for the Street and Alley Division (2015 – 2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Honnen Equipment, Mills, Wyoming, in an amount not to exceed \$279,190.00).

[CA] Consideration of Bid #E-9-19 for furnishing three new mowers for the Parks Division (2015 – 2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-7-19 for a contract between the City of Cheyenne, Community Recreation and Events Department, and A To Z Recreation, Littleton, Colorado, for the Fitness Course at Lions Park Project (Rec Mill Levy Grant) – referred to Finance Committee.

Appointment of Charles W. Bloom as Director of the Planning and Development Department for the City of Cheyenne. Mayor Orr introduced and welcomed Mr. Bloom. Mr. Luna moved to approve, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Orr who did not vote (Mayoral appointment).

Announcement was made that due to the Thanksgiving holiday schedule, the regularly scheduled City Council Public Services Committee meeting at Noon on Tuesday, November 20, 2018 in the Municipal Building, 2101 O’Neil Avenue, Room 104, Cheyenne, Wyoming, will instead be held on Monday, November 19, 2018 beginning at Noon.

Under other business:

Mr. Johnson commented and requested clarification on governing body participation related to site plan review and miscellaneous study procedures required during an annexation request. Mayor Orr stated City Council participation on related items occurs during Council Committee meetings and encouraged determining long term maintenance needs. Susana Montana, Planning and Development Department, explained the annexation application and review process. Discussion included agencies’ involvement during the review process and trying to address concerns early in the process.

Mr. Johnson requested clarification on the project dollar amount to date for the Cheyenne Municipal Court Project. Mayor Orr and City Treasurer Ron Downey reviewed current and projected dollar amounts and discussed utilizing funds out of reserves that are needed in excess of the approved 6th Penny project fund dollar amount. Discussion included reserve account balance and utilization with Mayor Orr explaining required reserve fund amounts (90 day reserve) and excess funds. Upon inquiry, Mayor Orr advised estimates received to salvage historical components of the existing building at the proposed Municipal Court project site were high, and confirmed the building will be demolished. Public Works Director Vicki Nemecek stated she would review the project contract and provide the building demolition date, as requested.

Mr. Case commented on the possibility of a live performance of the proposed ‘Cheyenne Anthem’ at a future Council meeting. Mayor Orr stated it is her understanding that there is a possibility the Cheyenne Children’s Choir will record the anthem and it will be presented during a Council meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:54 p.m.

Submitted by,

Kylie Soden
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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